In the matter between:

MALACH NKOMO

AND

LESLIE STARLING

AND

BRENDA STARLING

AND

PROVINCIAL MINING DIRECTOR, MATABELELAND SOUTH N.O.

AND

OFFICER IN CHARGE CID MFFU GWANDA N.O

AND

OFFICER IN CHARGE ZRP WEST NICHOLSON N.O

IN THE HIGH COURT OF ZIMBABWE

BULAWAYO

NDUNA J

25 JUNE & 30 JULY 2026

H Moyo for the Applicant
S Chamunorwa for the 1st and 2nd Respondents

COURT APPLICATION FOR REVIEW

NDUNA J: The Applicant seeks an order reviewing and setting aside the decision of the 3rd Respondent dated 31 December 2025.

FACTUAL BACKGROUND

The dispute originates from a boundary dispute between the Applicant and the 1st and 2nd Respondents which was determined by the 3rd Respondent on 7 July 2022. Following that determination, the parties were advised that any person aggrieved by the decision could approach the High Court. According to the Applicant, rather than pursuing that course, the 1st and 2nd Respondents approached the Secretary for Mines and Mining Development in 2024. The Secretary subsequently appointed an investigative committee and directed the 3rd Respondent to revisit the earlier determination. Following the committee's investigations, the 3rd Respondent issued correspondence dated 9 July 2025 recommending the cancellation of the Applicant's certificate. On 31 December 2025, the 3rd Respondent issued a further communication confirming the cancellation of the Applicant's Certificate of Registration, giving rise to the present proceedings.

Points in Limine

As a preliminary matter, the 1st and 2nd Respondents contend that the application for review was filed outside the eight-week period prescribed by Rule 62 of the High Court Rules, 2021. They argue that the review period began to run from the recommendation to cancel the certificate contained in the letter dated 9 July 2025, while the Applicant maintains that the operative administrative decision was only made on 31 December 2025 when the cancellation was confirmed and implemented.

The Respondents further raise an objection to the jurisdiction of the High Court. They submit that section 50(2) of the Mines and Minerals Act vests authority in the Minister to determine disputes relating to certificate cancellations and that the Applicant has already lodged an appeal before the Minister. On that basis, they argue that the matter is *lis pendens* and that the Applicant has failed to exhaust the internal remedies provided by statute. The Applicant disputes this contention, arguing that the present proceedings constitute a review of the legality of administrative action under the High Court Act and the Administrative Justice Act rather than an appeal on the merits, and that the High Court's supervisory jurisdiction is therefore not excluded.

The Respondents also challenge the competence of the relief sought, arguing that the draft order seeks substantive declaratory relief, including restoration of the mining claim and confirmation of ownership rights, which falls outside the scope of review proceedings. The Applicant contends that section 28 of the High Court Act empowers the court to grant effective

relief upon review and that the terms of the draft order may be amended by the court where necessary.

The Respondents further contend that granting the relief sought would sanction an illegality because the Applicant's mining claim lies within Exclusive Prospecting Order No. 1760 and was allegedly pegged without the consent required by section 47(2) of the Mines and Minerals Act. They also allege that the Applicant lacks the necessary Environmental Impact Assessment certificate, rendering the registration invalid from inception. The Applicant argues that these allegations relate to the substantive merits of the dispute rather than preliminary objections and further maintains that the Ministry itself processed and issued the certificate after considering the relevant requirements.

The Applicant, in turn, raises a preliminary objection alleging apprehension of bias and corruption. He contends that the 1st and 2nd Respondents came into possession of confidential internal Ministry documents that had never been communicated to him, suggesting procedural irregularity and an improper relationship with Ministry officials. The Respondents deny the allegation and argue that it was improperly introduced for the first time in the Applicant's answering affidavit, depriving them of an opportunity to respond fully.

Merits of the Application

On the merits, the Applicant contends that the 3rd Respondent acted without lawful authority in reopening the dispute after determining it on 7 July 2022. He argues that the 3rd Respondent became *functus officio* upon issuing that determination and therefore lacked jurisdiction to revisit the matter. The Applicant further submits that the Secretary for Mines and Mining Development possesses no statutory power under the Mines and Minerals Act to review or reopen a concluded boundary dispute or to direct the 3rd Respondent to reconsider his decision.

The Applicant further alleges that the cancellation of his certificate was procedurally unfair and in breach of the rules of natural justice. He contends that he was never informed of the legal framework governing the investigative committee or afforded an opportunity to make representations regarding the allegation that his claim fell within Exclusive Prospecting Order No. 1760. He further relies on section 58 of the Mines and Minerals Act, arguing that because his

certificate had been registered for more than two years, its validity could no longer be challenged on the basis of alleged defects in pegging. In addition, he alleges that the mandatory posting and gazetting requirements prescribed under section 50(5) of the Act were not complied with before the cancellation was effected.

The Respondents oppose these contentions. They maintain that the letter dated 31 December 2025 did not amount to a fresh administrative decision but merely communicated the implementation of the earlier recommendation made on 9 July 2025. They further rely on a subsequent letter dated 7 January 2026 in which the 3rd Respondent allegedly clarified that no final cancellation had taken effect and instructed the Applicant to cease mining operations pending the determination of his ministerial appeal. They argue that this subsequent communication superseded the earlier letter, with the result that there is no operative administrative decision capable of being reviewed.

The Respondents also dispute the Applicant's allegation of procedural unfairness, contending that the Applicant actively participated in the investigative committee's proceedings during the 2024 site inspection and was therefore aware of the issues under consideration. They maintain that the Applicant's claim falls within Exclusive Prospecting Order No. 1760, that the claim was unlawfully pegged without the statutory consent required by section 47(2) of the Mines and Minerals Act, and that the absence of an Environmental Impact Assessment certificate rendered the registration invalid from the outset.

GROUNDS OF REVIEW

The decision of the 3rd respondent is reviewable on the following grounds:

a) Ultra Vires Conduct, the 3rd respondent exceeded his statutory authority by purporting to review and cancel a finalized determination.

b) Functus Officio, having made a final decision in July 2022, he lacked jurisdiction to reopen the matter.

c) Breach of Natural Justice (Audi Alteram partem), Applicant was not hearing before cancellation of certificate.

d) Procedural irregularity, applicant's written response was ignored despite of receipt.

e) Irrationality and Unreasonableness, the decision was based on extraneous considerations (Epo 1760), which were never part of the original dispute.

f) Absence of Lawful Appeal or court order, no High court appeal or review was ever filed.

g) The 3rd respondent acted grossly unreasonable by cancelling the certificate after a period of 2 years after issuance.

WHEREFORE Applicant prays for an Order as follows:

1. An order reviewing and setting aside the decision of the delivered 3rd respondent on 31st December 2025.
2. An order substituting the 3rd respondent's decision and replacing it with the following:
    i. The Certificate of Registration No. 50985 for Malach Nkomo is valid.
    ii. Parties shall not encroach boundaries.
    iii. Applicant is restored his Mining Claim
3. Costs on a punitive scare against 1st and 2nd respondents. [sic]

ISSUES FOR DETERMINATION

1. Whether the application for review was filed within the period prescribed by Rule 62 of the High Court Rules, 2021.
2. Whether this Court's jurisdiction is ousted by section 50 of the Mines and Minerals Act and the Applicant's pending ministerial appeal.
3. Whether the relief sought in the draft order is competent in review proceedings.
4. Whether the application seeks to sanction an illegality by enforcing an allegedly invalid mining registration.

5. Whether the Applicant's allegation of bias and procedural irregularity constitutes a proper preliminary point.
6. Whether the 3rd respondent had jurisdiction to cancel the certificate, or was functus officio and acted ultra vires.
7. Whether the applicant was denied procedural fairness, including the right to be heard
8. Whether the cancellation was irrational or unreasonable

APPLICATION OF THE LAW

POINTS IN LIMINE

Whether the Application is Time-Barred

The Respondents contend that the application is barred by Rule 62 of the High Court Rules, 2021 on the basis that the eight-week period commenced on 9 July 2025, when the 3rd Respondent issued correspondence recommending the cancellation of the Applicant's Certificate of Registration. They argue that the application ought to have been instituted within eight weeks of that date and is therefore out of time.

This contention cannot be sustained when regard is had to the statutory framework governing cancellation under section 50 of the Mines and Minerals Act.

Section 50(2) expressly distinguishes between the intention to cancel and the actual cancellation of a certificate. Before a mining commissioner may cancel a certificate of registration, the statute imposes mandatory procedural requirements. The holder must be given at least thirty days' notice of the intention to cancel, informed of the grounds for the proposed cancellation and the proposed date of cancellation, and advised of the right to appeal to the Minister before the cancellation takes effect. The section provides:

> "At least thirty days before cancelling a certificate of registration... the mining commissioner shall give notice... of his intention to cancel... and shall at the same time inform the holder that he may... appeal in writing to the Minister against such cancellation."

The statutory language makes it clear that a notice of intention or recommendation to cancel is not itself the cancellation. It is merely a preliminary administrative step intended to trigger the procedural safeguards afforded to the holder before any adverse decision is implemented. The legal consequences only arise once the mining commissioner proceeds to effect the cancellation after compliance with the prescribed procedure.

In the present matter, the correspondence dated 9 July 2025 expressly communicated a recommendation or intention to cancel and afforded the Applicant thirty days within which to exercise his statutory right of appeal. That communication was therefore interlocutory in nature and did not itself extinguish the Applicant's rights under the certificate of registration. It neither purported to implement the cancellation immediately nor constituted the definitive administrative act contemplated by section 50.

The operative administrative decision arose only on 31 December 2025, when the 3rd Respondent issued correspondence confirming that the Applicant's Certificate of Registration had been cancelled and proceeded to invoke enforcement measures by directing police intervention. It was this decision that produced immediate legal consequences by depriving the Applicant of his registered mining rights and exposing him to enforcement action. It is this decision which constitutes the administrative act susceptible to review.

The distinction between a proposed administrative action and a final administrative decision is consistent with the reasoning in *BMG Mining (Pvt) Ltd v Mining Commissioner, Bulawayo & Others* HB-5-11. In that matter, the court emphasised the mandatory nature of section 50 and held:

> "There has been a signal failure to comply with any of these provisions relating to cancellation of the registration certificate. What the 1st Respondent has done is merely to announce the cancellation without more."

The decision illustrates that compliance with section 50 is not achieved by simply communicating an intention or announcement of cancellation. The statutory process must first be completed before a lawful cancellation comes into existence. By parity of reasoning, a notice issued under section 50(2) cannot itself constitute the final administrative decision from which time for review begins to run.

Accordingly, the Respondents' attempt to calculate the eight-week period from 9 July 2025 conflates a preliminary statutory notice with the final administrative decision. The cause of action accrued only when the cancellation was actually implemented on 31 December 2025. Since the present application was instituted within eight weeks of that decision, it complies with Rule 62 of the High Court Rules, 2021 and cannot be said to be time-barred. The first point in limine must therefore fail.

Whether this Court's Jurisdiction is Ousted by the Pending Ministerial Appeal

The Respondents contend that this Court lacks jurisdiction because the Applicant has lodged an appeal to the Minister in terms of section 50(2) of the Mines and Minerals Act, rendering the matter *lis pendens*. Section 27 of the High court Act states

> **27 Grounds for review**
>
> (1) Subject to this Act and any other law, the grounds on which any proceedings or decision may
>
> be brought on review before the High Court shall be—
>
> (*a*) absence of jurisdiction on the part of the court, tribunal or authority concerned;
>
> (*b*) interest in the cause, bias, malice or corruption on the part of the person presiding over the court
>
> or tribunal concerned or on the part of the authority concerned, as the case may be;
>
> (*c*) gross irregularity in the proceedings or the decision.
>
> (2) Nothing in subsection (1) shall affect any other law relating to the review of proceedings or
>
> decisions of inferior courts, tribunals or authorities

Furthermore the inherent power of the High Court is that unwritten power which it is endowed with as a superior court. As stated by DUBE J in *Derdale Investments (Pvt) Ltd* v *Econet Wirelss (Pvt) Ltd and Others* 2014 (2) ZLR 662 (H) at 670E;

> "Inherent power gives the court wide ranging and all-embracing powers to deal with any matter that may be placed before them. This means that a court of inherent jurisdiction has default powers which it can exercise in the absence of express power and can deal with all areas of the law and all procedural matters involving the administration of justice."

The objection is without merit. The Respondent conflates an appeal with a review. The Applicant does not challenge the correctness of the decision on its merits. Rather, he challenges the legality of the administrative process, alleging that the 3rd Respondent acted without jurisdiction, breached the rules of natural justice, and committed procedural irregularities. These are recognised grounds of review. Section 27 of the High Court Act confers on this Court the power to review the proceedings and decisions of administrative authorities

Accordingly, the pending ministerial appeal does not deprive this Court of jurisdiction, and the second point in limine cannot succeed.

Whether the Relief Sought is Fatally Defective

The Respondents contend that the application is incompetent because paragraph 2 of the Draft Order seeks substantive relief, namely a declaration that the Applicant's Certificate of Registration is valid and the restoration of the mining claim, instead of limiting itself to setting aside the impugned decision.

The objection is misplaced. A draft order is merely the relief proposed by an applicant and is not determinative of the competence of the application. In *Samukeliso Mabhena v Edmund Mbangani* HB 57-18, the court held:

> "An application cannot be defeated merely on the basis of a defective draft order. The draft order is, after all, the wishful thinking of the applicant. It is for the judge or the court to grant whatever order would have been proved in the application."

Furthermore, section 28 of the High Court Act empowers this Court, on review, to "set aside or correct the proceedings or decision." If the Court concludes that any portion of the relief sought exceeds what is competent on review, it may simply grant such relief as is appropriate. The inclusion of wider relief in the draft order does not render the entire application fatally defective.

Accordingly, the third point in limine is without merit and ought to be dismissed.

Whether the Application Seeks to Sanction an Illegality

The Respondents contend that the Applicant's mining claim is a nullity *ab initio* because it was allegedly pegged within Exclusive Prospecting Order No. 1760 without the consent required by section 47(2) of the Mines and Minerals Act and because the Applicant allegedly lacks an Environmental Impact Assessment (EIA) certificate. They argue that the Court cannot grant relief that would validate an unlawful registration.

This objection is misconceived. Whether the Applicant's certificate is invalid for non-compliance with section 47(2) or for want of an EIA certificate is a substantive issue that goes to the merits of the dispute and requires the evaluation of evidence. It is not a pure point of law capable of disposing of the application in limine.

The present application is not concerned with whether the mining claim was lawfully registered. Rather, it challenges the legality of the process adopted by the 3RD Respondent in cancelling the Applicant's Certificate of Registration. The Applicant alleges that the 3rd Respondent acted *ultra vires*, reopened a matter after becoming *functus officio,* and failed to comply with the mandatory procedures prescribed by section 50 of the Mines and Minerals Act. Those complaints relate to the validity of the administrative process, not the correctness of the ultimate decision.

The distinction between a review and an appeal was explained in *Herbstein & Van Winsen, Civil Practice of the Supreme Court of South Africa* (4th ed) at p. 932:

> "The reason for bringing proceedings under review or appeal is usually the same, to have the judgment set aside. Where the reason for wanting this is that the court came to a wrong conclusion on the facts or the law, the appropriate procedure is by way of appeal. Where, however, the real grievance is against the method of the trial, it is proper to bring the case on review. The first distinction depends, therefore, on whether it is the result only or rather the method of trial which is to be attacked. Naturally, the method of trial will be attacked on review only when the result of the trial is regarded as unsatisfactory as well. The giving of a judgment not justified by the evidence would be a matter of appeal and not a review, upon this test. The essential question in review proceedings is not the correctness of the decision under review but its validity."

Accordingly, the Respondents' assertions regarding the alleged illegality of the mining claim concern the correctness of the administrative decision and are matters for determination on

the merits. They cannot be relied upon as a preliminary bar to defeat a review application that challenges the legality of the decision-making process itself.

The fourth point in limine should therefore be dismissed.

Whether the Applicant's allegation of bias and procedural irregularity constitutes a proper preliminary point.

The Applicant contends that the 1ST and 2ND Respondents' possession of internal Ministry documents which had not been communicated to him demonstrates bias, corruption and procedural irregularity on the part of the administrative authorities. The Respondents object to this allegation on the basis that it was raised for the first time in the Applicant's answering affidavit.

The Respondents' objection is well founded. It is settled that an applicant must make out his case in the founding affidavit and may not introduce new material facts in the answering affidavit, as doing so deprives the opposing party of an opportunity to respond.

In *Kaskay Properties (Pvt) Ltd v Minister of Lands and Rural Resettlement and Others* HH-762-18, Mangota J held:

> "A litigant who makes a conscious decision to sue through motion, as opposed to action, proceedings is enjoined to anticipate the respondent's defence... A litigant... should not leave material facts which support his case or rebut the respondent's case to the answering affidavit. Where he does so, he runs the risk of the court not taking into account new evidence which he places in the answering affidavit as the respondent would not have had an opportunity to make any comments on the new evidence."

In casu, the allegation of bias based on the Respondents' possession of internal Ministry documents was not pleaded in the founding affidavit but was introduced for the first time in the answering affidavit. It constitutes a material factual allegation upon which the Applicant seeks to found a ground of review. By raising it at that stage, the Applicant deprived the Respondents of a proper opportunity to answer the allegation by affidavit.

In the circumstances, the allegation of bias cannot properly be entertained, and the Applicant's preliminary point must fail.

MERITS

The Applicant submits that the 3rd Respondent acted *ultra vires* the Mines and Minerals Act by reopening and reversing his own determination of the boundary dispute after having finally determined it on 7 July 2022. In that determination, the parties were expressly advised that any party dissatisfied with the decision could approach the High Court. Instead of challenging the decision before the High Court, the 1st and 2nd Respondents approached the Secretary for Mines and Mining Development in 2024, who appointed an investigative committee and directed the 3rd Respondent to revisit the matter. Acting on that directive, the 3rd Respondent ultimately cancelled the Applicant's Certificate of Registration.

The Applicant contends that neither the Mines and Minerals Act nor any other statutory provision empowers the Secretary to review or overturn a final determination of the Mining Commissioner or to direct him to reconsider a concluded matter. This position was stated in *Mixnote Investments (Pvt) Ltd v Majola E & Ors* HB-40-17, where the court held:

> "There is no way it could be understood to mean that the Secretary is the Mining Commissioner. While the Secretary is empowered to perform the functions of a mining commissioner at his own discretion, it cannot be said that he or she is a mining commissioner. The Secretary supervises and regulates the functions of the mining commissioner but there is nowhere in the Act where it says that he has appellate jurisdiction over the court of the mining commissioner."

The above decision makes it clear that although the Secretary exercises supervisory functions over Mining Commissioners, those powers do not extend to reviewing, reversing or directing the reconsideration of decisions already made by a Mining Commissioner. The Secretary therefore acted outside the powers conferred by the Mines and Minerals Act in directing the 3rd Respondent to revisit the determination of 7 July 2022.

Similarly, once the 3rd Respondent rendered his determination on 7 July 2022, he exhausted his statutory mandate in respect of that dispute and became *functus officio*. The principle was explained in *Madyauta M v Madziva M* HH-15-22, where the court held:

> "The *functus officio* principle simply means after hearing a case for the first time the judicial officer will have completed his functions over that case, and cannot hear it again. This rule is of universal application and ensures that justice is seen to be done."

Although the decision concerned judicial proceedings, the principle applies equally to administrative decision-makers exercising statutory powers. Once a public authority has lawfully exercised its power and rendered a final decision, it cannot revisit or alter that decision unless expressly authorised by statute.

In the circumstances of this case, the 3rd Respondent issued a final determination on 7 July 2022 and directed any aggrieved party to seek recourse before the High Court. Instead of following that course, the dispute was revived through an investigative committee established by the Secretary, culminating in the recommendation of 9 July 2025 and the cancellation of the Applicant's certificate on 31 December 2025. Since neither the Secretary nor the 3rd Respondent possessed statutory authority under the Mines and Minerals Act to reopen or review the 2022 determination, the subsequent proceedings and cancellation were undertaken without jurisdiction and were therefore *ultra vires* the Act and liable to be set aside.

Whether There Was a Breach of Natural Justice

The Applicant submits that the cancellation of his Certificate of Registration was effected in breach of the rules of natural justice and in violation of section 3(2)(b) of the Administrative Justice Act [Chapter 10:28], which states follows:

> "(2) In order that an administrative action may be taken in a fair manner as required by subsection (1), an administrative authority shall give a person referred to in subsection (1)—
>
> (a) adequate notice of the nature and purpose of the proposed administrative action; and
>
> (b) a reasonable opportunity to make adequate representations; and
>
> (c) adequate notice of any right of review or appeal where applicable."

The Applicant contends that although an investigative committee was appointed by the Secretary for Mines and Mining Development, he was never called to a hearing to address the legal basis upon which his certificate was ultimately cancelled. In particular, he was not afforded an opportunity to respond to the allegation that his claim was situated within Exclusive Prospecting Order No. 1760 or to address the legal consequences of that allegation before the cancellation was

effected. He further maintains that he was never informed of the legal framework under which the committee was acting before the adverse decision was made.

The importance of the audi alteram partem rule was emphasised in *Hippo Valley Estates v Minister of Environment, Water and Climate* HH-235-18, where the court held:

> "The audi alteram partem rule is a principle of natural justice. It enjoins decision-makers to hear the other side before he/she makes a decision which adversely affects the rights of the other party."

When the foregoing principle is applied, the decision to cancel the Applicant's Certificate of Registration undoubtedly affected his proprietary rights in the mining claim. The 3rd Respondent was therefore under a statutory duty to afford the Applicant a meaningful opportunity to be heard before reaching that decision. The failure to do so constitutes a breach of section 3(2)(b) of the Administrative Justice Act and the audi alteram partem rule, rendering the impugned decision procedurally unfair and liable to be reviewed and set aside.

Whether the Decision was Unreasonable and Irrational

The Applicant contends that the decision to cancel his Certificate of Registration was unreasonable and irrational. He relies on section 58 of the Mines and Minerals Act, which provides as follows:

"58 Title to mining location indisputable after two years

> When a mining location or a secondary reef in a mining location has been registered for a period of two years it shall not be competent for any person to dispute the title in respect of such location or reef on the ground that the pegging of such location or reef was invalid or illegal or that provisions of this Act were not complied with prior to the issue of the certificate of registration."

Whilst section 58 affords considerable protection to registered mining titles, that protection is not absolute. There are recognised exceptions to the provision. For example, in *Shamva Mining Co (Pvt) Ltd v OCCA Mining (Pvt) Ltd, Mining Commissioner-Mashonaland Central & 2 Ors* HH-263-25, the court recognised that claims founded on prior rights may, in appropriate circumstances,

prevail notwithstanding the provisions of section 58. Accordingly, the Applicant's reliance on section 58 alone does not automatically invalidate the cancellation.

However, the reasonableness of an administrative decision is determined not only by its outcome but also by the process through which it was reached. In casu, the Applicant was not afforded an opportunity to respond to the allegations upon which the cancellation was ultimately based, particularly those concerning the Exclusive Prospecting Order. Furthermore, although section 50(2) of the Mines and Minerals Act affords an aggrieved holder the right to appeal to the Minister, the Applicant's appeal had not been determined before the 3rd Respondent proceeded to cancel the certificate.

By implementing the cancellation before the statutory appeal process had run its course, and without first affording the Applicant a proper hearing, the 3rd Respondent acted prematurely and deprived the Applicant of the procedural safeguards provided by law. In those circumstances, the decision cannot be said to have been reasonable or rational. It was procedurally unfair and was taken in a manner that was neither just nor consistent with the requirements of lawful administrative action.

DISPOSITION

In light of this the Court is satisfied that the Applicant has established valid grounds for review. The impugned decision was reached through a process that was procedurally irregular and beyond the statutory powers conferred upon the 3rd Respondent. Consequently, the decision cannot stand.

Accordingly, the review succeeds. The decision of the 3rd Respondent dated 31 December 2025 is hereby reviewed and set aside. 1st and 2nd Respondents to pay costs at ordinary scale.

Joel Pincus Konson & Wolhuter applicant’s legal practitioners

Calderwood, Bryce Hendrie & Partners respondents’ legal practitioners